26. Laws inconsistent with fundamental rights to be void.
(1) All existing law inconsistent with the provisions of this Part shall, to the extent of such inconsistency, become void on the commencement of this Constitution.
(2) The State shall not make any law inconsistent with any provisions of this Part, and any law so made shall, to the extent of such inconsistency, be void.
(3) Nothing in this article shall apply to any amendment of this Constitution made under article 142 .

27. Equality before law.
All citizens are equal before law and are entitled to equal protection of law.

28. Discrimination on grounds of religion, etc.
(1) The State shall not discriminate against any citizen on grounds only of religion, race caste, sex or place of birth.
(2) Women shall have equal rights with men in all spheres of the State and of public life.
(3) No citizen shall, on grounds only of religion, race, caste, sex or place of birth be subjected
to any disability, liability, restriction or condition with regard to access to any place of public entertainment or resort, or admission to any educational institution.
(4) Nothing in this article shall prevent the State from making special provision in favour of women or children or for the advancement of any backward section of citizens.

29. Equality of opportunity in public employment.
(1) There shall be equality of opportunity for all citizens in respect of employment or office in the service of the Republic.
(2) No citizen shall, on grounds only of religion, race, caste, sex or place of birth, be ineligible
for, or discriminated against in respect of, any employment or office in the service of the Republic.
(3) Nothing in this article shall prevent the State from -
(a) making special provision in favour of any backward section of citizens for the purpose of securing their adequate representation in the service of the Republic;
(b) giving effect to any law which makes provision for reserving appointments relating to any religious or denominational institution to persons of that religion or denomination; reserving for members of one sex any class of employment or office on the ground that it is considered by its nature to be unsuited to members of the opposite sex.

33. Safeguards as to arrest and detention.
(1) No person who is arrested shall be detained in custody without being informed, as soon as may be of the grounds for such arrest, nor shall he be denied the right to consult and be defended by a legal practitioner of his choice.
(2) Every person who is arrested and detained in custody shall be produced before the nearest
magistrate within a period of twenty four hours of such arrest, excluding the time necessary for the journey from the place of arrest to the court of the magistrate, and no such person shall be detained in custody beyond the said period without the authority of a magistrate.
(3) Nothing in clauses (1) and (2) shall apply to any person-
(a) who for the time being is an enemy alien; or

(b) who is arrested or detained under any law providing for preventive detention.
(4) No law providing for preventive detention shall authorise the detention of a person for a period exceeding six months unless an Advisory Board consisting of three persons, of whom
two shall be persons who are, or have been, or are qualified to be appointed as, Judges of the
Supreme Court and the other shall be a person who is a senior officer in the service of the Republic, has, after affording him an opportunity of being heard in person, reported before the expiration of the said period of six months that there is, in its opinion, sufficient cause for such detention.
(5) When any person is detained in pursuance of an order made under any law providing for preventive detention, the authority making the order shall, as soon as may be, communicate to such person the grounds on which the order has been made, and shall afford him the earliest
opportunity of making a representation against the order.
(6) Parliament may be law prescribe the procedure to be followed by an Advisory Board in an inquiry under clause (4) .

36. Freedom of movement.
Subject to any reasonable restrictions imposed by law in the public interest, every citizen shall have the right to move freely throughout Bangladesh, to reside and settle in any place therein and to leave and re-enter Bangladesh.

37. Freedom of assembly.
Every citizen shall have the right to assemble and to participate in public meetings and processions
peacefully and without arms, subject to any reasonable restrictions imposed by law
in the interests of public order health.

38. Freedom of association.
Every citizen shall have the right to form associations or unions, subject to any reasonable restrictions imposed by law in the interests of morality or public order;

CHAPTER II – THE PRIME MINISTER AND THE CABINET

55. The Cabinet.
(1) There shall be a Cabinet for Bangladesh having the Prime Minister at its head and comprising
also such other Minister as the Prime Minister may from time to time designate.
(2) The executive power of the Republic shall, in accordance with this Constitution, be exercised
by or on the authority of the Prime Minister.
(3) The Cabinet shall be collectively responsible to Parliament.
(4) All executive actions of the Government shall be expressed to be taken in the name of the President.
(5) The President shall by rules specify the manner in which orders and other instruments made in his name shall be attested of authenticated, and the validity or any order of instrument
so attested or authenticated shall not be questioned in any court on the ground that it

was not duly made or executed.
(6) The President shall make rules for the allocation and transaction of the business of the Government.

56. Minister.
(1) There shall be Prime Minister, and such other Ministers, Ministers of State and Deputy Ministers as may be determined by the Prime Minister.
(2) The appointments of the Prime Minister and other Ministers and of the Ministers of State and Deputy Ministers, shall be made by the President: Provided that not less than ninetenths
of their number shall be appointed from among members of Parliament and not more than one-tenth of their number may be chosen from among persons qualified for election as members of Parliament.
(3) The President shall appoint as Prime Minister the member of Parliament who appears to him to command the support of the majority of the members of Parliament.
(4) If occasion arises for making any appointment under clause (2) of clause (3) between a dissolution of Parliament and the next following general election of members of Parliament, the persons who were such members immediately before the dissolution shall be regarded for the purpose of this clause as counting to be such members.

57. Tenure of office of Prime Minister.
(1) The office of the Prime Minister shall be vacant -
(a) if he resigns from office at any time by placing his resignation in the hands of the President; or
(b) if he ceases to be a member of Parliament.
(2) If the Prime Minister ceases to retain the support of a majority of the members of Parliament,
he shall either resign his office or advise the President shall, if he is satisfied that no other member of Parliament commands the support of the majority of the members of Parliament,
dissolve Parliament accordingly.
(3) Nothing in this article shall disqualify the Prime Minister for holding office until his successor
has entered upon office.

58. Tenure of office of other Ministers.
(1) The office of a Minister other than the Prime Minister shall become vacant-
(a) if he resigns from office by placing his resignation in the hands of the Prime Minister for submission to the President;
(b) if he ceases to be a member of Parliament, but this shall not be applicable to a Minister chosen under the proviso to article 56(2);
(c) if the President, pursuant to the provisions of clause (2), so directs; or
(d) as provided in clause (4).
(2) The Prime Minister may at any time request a Minister to resign, and if such Minister fails to comply with the request, may advise the President to terminate the appointment of such Minister.
(3) Nothing in sub-clauses (a), (b), and (d) of clause (1) shall disqualify a Minister for holding
office during any period in which Parliament stands dissolved.

(4) If the Prime Minister resigns from or ceases to hold office each of the other Ministers shall be deemed also to have resigned from office but shall, subject to the provisions of the Chapter, continue to hold office until his successor has entered upon office.
(5) In this article "Minister" includes Minister of State and Deputy Minister.

58A. Application of Chapter.
Application of Chapter.- Nothing in this Chapter, except the provision of article 55(4), (5) and (6), shall apply during the period in which Parliament is dissolved or stands dissolved: Provided that, notwithstanding anything contained in Chapter IIA, where the President summons Parliament that has been dissolved to meet under article 72(4), this Chapter shall apply."

CHAPTER IIA
NON-PARTY CARE TAKER GOVERNMENT

58B. Non-Party Care-taker Government
(1) There shall be a Non-Party Care-taker Government during the period from the date on which the Chief Adviser of such government enters upon office after Parliament is dissolved or stands dissolved by reason of expiration of its term till the date on which a new Prime Minister enters upon his office after the constitution of Parliament.
(2) The Non-Party Care-taker Government shall be collectively responsible to the President.
(3) The executive power of the Republic shall, during the period mentioned in clause (1), be exercised, subject to the provisions of article 58D(1), in accordance with this Constitution, by or on the authority of the Chief Adviser and shall be exercised by him in accordance with the advice of the Non-Party Care-taker Government.
(4) The provisions of article 55(4), (5) and (6) shall (with the necessary adaptations) apply to similar matters during the period mentioned in clause (1).

58C. Composition of the Non-Party Care-taker Government, appointment of Advisers, etc.
(1) Non-Party Care-taker Government shall consist of the Chief Adviser at its head and not more than ten other Advisors, all of whom shall be appointed by the President.
(2) The Chief Adviser and other Advisers shall be appointed within fifteen days after Parliament
is dissolved or stands dissolved, and during the period between the date on which Parliament is dissolved or stands dissolved and the date on which the Chief Adviser is appointed,
the Prime Minister and his cabinet who were in office immediately before Parliament was dissolved or stood dissolved shall continue to hold office as such.
(3) The President shall appoint as Chief Adviser the person who among the retired Chief Justices of Bangladesh retired last and who is qualified to be appointed as an Adviser under this article:
Provided that if such retired Chief Justice is not available or is not willing to hold the office of Chief Adviser, the President shall appoint as Chief Adviser the person who among the retired
Chief Justices of Bangladesh retired next before the last retired Chief Justice.
(4) If no retired Chief Justice is available or willing to hold the office of Chief Advise, the President shall appoint as Chief Adviser the person who among the retired Judges of the Appellate Division retired last and who is qualified to be appointed as an Adviser under this

article:
Provided that if such retired Judge is not available or is not willing to hold the office of Chief Adviser, the President shall appoint as Chief Adviser the person who among the retired
Judges of the Appellate Division retired next before the last such retired Judge.
(5) If no retired judge of the Appellate Division is available or willing to hold the office of Chief Adviser, the President shall, after consultation, as far as practicable, with the major political parties, appoint the Chief Adviser from among citizens of Bangladesh who are qualified to be appointed as Advisers under this article.
(6) Notwithstanding anything contained in this Chapter, if the provisions of clauses (3), (4) and (5) cannot be given effect to, the President shall assume the functions of the Chief Adviser
of the Non-Party Care-taker Government in addition to his own functions under this Constitution.
(7) The President shall appoint Advisers from among the persons who are-
(a) qualified for election as members of parliament;
(b) not members of any political party or of any organisation associated with or affiliated to any political party;
(c) not, and have agreed in writing not to be, candidates for the ensuing election of members of parliament;
(d) not over seventy-two years of age.
(8) The Advisers shall be appointed by the President on the advice of the Chief Adviser.
(9) The Chief Adviser or an Adviser may resign his office by writing under his hand addressed
to the President.
(10) The Chief Adviser or an Adviser shall cease to be Chief Adviser or Adviser if he is disqualified
to be appointed as such under this article.
(11) The Chief Adviser shall have the status, and shall be entitled to the remuneration and privileges, of a Prime Minister and an Adviser shall have the status, and shall be entitled to the remuneration and privileges, of a Minister.
(12) The Non-Party Care-taker Government shall stand dissolved on the date on which the prime Minister enters upon his office after the constitution of new parliament.

58D. Functions of Non-Party Care-taker Government
(1) The Non-Party Care-taker Government shall discharge its functions as an interim government
and shall carry on the routine functions of such government with the aid and assistance of persons in the services of the Republic; and, except in the case of necessity for the discharge of such functions its shall not make any policy decision.
(2) The Non-Party Care-taker Government shall give to the Election Commission all possible
aid and assistance that may be required for bolding the general election of members of parliament peacefully, fairly and impartially.

58E. Certain provisions of the Constitution to remain ineffective
Notwithstanding anything contained in articles 48(3), 141A(1) and 141C(1) of the Constitution,
during the period the Non-Party Care-taker government is functioning, provisions in

the constitution requiring the President to act on the advice of the Prime Minister or upon his prior counter-signature shall be ineffective."

CHAPTER-V - THE ATTORNEY GENERAL

64. The Attorney-General

(1) The President shall appoint a person who is qualified to be appointed as a judge of the Supreme Court to be Attorney-General for Bangladesh.
(2) The Attorney-General shall perform such duties as may be assigned to him by the President.
(3) In the performance of his duties, the Attorney-General shall have the right of audience in all courts of Bangladesh.
(4) The Attorney-General shall hold office during the pleasure of the President, and shall receive
such remuneration as the President may determine.

72. Sessions of Parliament

(1) Parliament shall be summoned, prorogued and dissolved by the President by public notification
and when summoning Parliament the President shall specify the time and place of
the first meeting: 43 Provided that a period exceeding sixty days shall not intervene between
the end of one session and the first sitting of Parliament in the next session:
Provided further that in the exercise of his functions under this clause, the President shall act
in accordance with the advice of the Prime Minister tendered to him in writing.
(2) Notwithstanding the provisions of clause (1) Parliament shall be summoned to meet within thirty days after the declaration of the results of polling at any general election of members of Parliament.
(3) Unless sooner dissolved by the President, Parliament shall stand dissolved on the expiration
of the period of five years from the date of its first meeting.
Provided that at any time when the Republic is engaged in war the period may be extended by Act of Parliament by not more than one year at a time but shall not be so extended beyond
six months after the termination of the war.
(4) If after a dissolution and before the holding of the next general election of members of Parliament the President is satisfied that owing to the existence of a state of war in which he Republic is engaged it is necessary to recall Parliament, the President shall summon the Parliament
that has been dissolved to meet.
(5) Subject to the provisions of clause (1) the sittings of Parliament shall be held at such times and places as Parliament may, by its rules of procedure or otherwise determine.

CHAPTER I- THE SUPREME COURT

94. Establishment of Supreme Court

(1) There shall be a Supreme Court for Bangladesh (to be Known as the Supreme Court of Bangladesh) comprising the Appeallate Division and the High Court Division.

(2) The Supreme Court shall consist of the Chief Justice, to be known as the Chief Justice of
Bangladesh, and such number of other Judges as the President may deem it necessary to appoint
to each division.
(3) The Chief Justice, and the Judges appointed to the Appellate Division, shall sit only in that division, and the other Judges shall sit only in the High Court Division.
(4) Subject to the provisions of this Constitution the Chief Justice and the other Judges shall be independent in the exercise of their judicial functions.

95. Appointment of Judges
(1) The Chief Justice and other Judges shall be appointed by the President.
(2) A person shall not be qualified for appointment as a Judge unless he is a citizen of Bangladesh
and-
(a) has, for not less than ten years, been a advocate of the Supreme Court; or
(b) has, for not less than ten years, helf judicial office in the territory of Bangladesh; or
(c) has such other qualifications as may be prescribed by law for appointment as a Judge of the Supreme Court.
(3) In this articles, "Supreme Court" includes 'a Court which at any time before the commencement
of the Second Proclamation (Tenth Amendment) Order, 1977, exercised jurisdiction
as a High Court or Supreme Court in the territory now forming part of Bangladesh.

96. Tenure of office of Judges
(1) Subject to the other provisions of this article, a Judge shall hold office until he attains the age of 60 sixty-seven years.
(2) A Judge shall not be removed from office except in accordance with the following provisions
of this article.
(3) There shall be a Supreme Judicial Council, in this article referred to as the council, which shall consist of the Chief Justice of Bangladesh, and the two next senior Judges:
Provided that if, at any time, the Council is inquiring into the capacity or conduct of a Judge who is a member of the Council, or a member of the Council is absent or is unable to act due
to illness or other cause, the Judge who is next in seniority to those who are members of the
Council shall act as such member.
(4) The function of the Council shall be-
(a) to prescribe a Code of Conduct to be observed by the Judges; and
(b) to inquire into the capacity or conduct of a Judge or of any other functionary who is not removable from office except in like manner as a Judge.
(5) Where, upon any information received from the Council or from any other source, the President has reason to apprehend that a Judge-
(a) may have ceased to be capable of properly performing the functions of his office by reason
of physical or mental incapacity, or
(b) may have been guilty of gross misconduct, the President may direct the Council to inquire

into the matter and report its finding.
(6) If, after making the inquiry, the Council reports to the President that in its opinion the Judge has ceased to be capable of properly performing the functions of his office or has been
guilty of gross misconduct, the President shall, by order, remove the Judge from office.
(7) For the purpose of an inquiry this article, the Council shall regulate its procedure and shall have, in respect of issue and execution of processes, the same power as the Supreme Court.
(8) A Judge may resign his office by writing under his hand addressed to the President.

118. Establishment of Election Commission
(1) There shall an Election Commission for Bangladesh consisting of a Chief Election Commissioner and such number of other Election Commissioners, if any as the President may from time to time direct, and the appointment of the Chief Election Commissioner and other Election commissioners (if any) shall, subject to the provisions of any law made in that behalf, be made by the President.
(2) When the Election Commission consists of more than one person, the Chief Election Commissioner shall act as the chairman thereof.
(3) Subject to the provisions of this Constitution the term of office of an Election Commissioner
shall be five years from the date on which he enters upon his office, and-
(a) a person who has held office as Chief Election Commissioner shall not be eligible for appointment in the service of the Republic;
(b) any other election Commissioner shall, on ceasing to hold office as such, be eligible for appointment as Chief Election Commissioner but shall not be otherwise eligible for appointment
in the service of the Republic.
(4) The Election Commission shall be independent in the exercise of its functions and subject
only to this Constitution and any other law.
(5) Subject to the provisions of any law made by Parliament, the conditions of service of Election Commissioners shall be such as the President may, by order, determine:
Provided that an Election Commissioner shall not be removed from his office except in like manner and on the like grounds as a judge of the 72 Supreme Court.
(6) An Election Commissioner may resign his office by writing under his hand address to the President.

119. Functions of Election Commission
(1) The superintendence, direction and control of the preparation of the election rolls for elections to the office or President and to Parliament and the conduct of such elections shall vest in the Election Commission which shall, in accordance with his Constitution and any other law-
(a) hold elections to the office of President;
(b) hold elections of members of Parliament;
(c) delimit the constituencies for thepurpose of elections to Parliament; and
(d) prepare electroral roles for the purpose of elections to the office of President and to Parliament.
(2) The Election Commission shall perform such functions, in addition to those specified in the foregoing clauses, as may be prescribed by this Constitution or by any other law.

123. Time for holding elections
(1) In the case of a vacancy in the office of President occurring by reason of the expiration of his term of office an election to fill the vacancy shall be helf within the period of ninety to sixty days prior to the date of expiration of the term:
Provided that if the term expires before the dissolution of the Parliament by members of which he was elected the election to fill the vacancy shall not be held until after the next general election of members of Parliament, but shall be held within thirty days after the first sitting of Parliament following such general election.
(2) In the case of a vacancy in the office of President occurring by reason of the death, resignation
or removal of the President, an election to fill the vacancy shall be held within the period of ninety days after the occurrence of the vacancy.
(3) A general election of members of Parliament shall be held within ninety days after Parliament
is dissolved, whether by reason of the expiration of its term or otherwise than by reason of such expiration.
(4) An election to fill the seat of a member of Parliament which falls vacant otherwise than by reason of the dissolution of Parliament shall be helf within ninety days of the occurrence of the vacancy :
Provided that in a case where, in the opinion of the Chief Election Commissioner, it is not possible, for reasons of an act of God, to hold such election within the period specified in this clause, such election shall be held within ninety days following next after the last day of such period.

Tenth Amendment: The Constitution Act 1990 revised, among others, Article 65 of the Constitution, stated for reservation of thirty places for the next 10 years in the Jatiya Sangsad entirely for women members, who will be elected by the members of the Sangsad.

Eleventh Amendment: The Constitution Act 1991 approves all actions taken by the caretaker government headed by Justice Shahabiuddin Ahmed. It also approves the appointment of Chief Justice Shahabuddin Ahmed as the Vice President who afterward becomes Acting President upon Ershad's resignation. In addition, the Act also established and made possible the return of Acting President Shahabuddin Ahmed to his preceding place as the Chief Justice of Bangladesh.

Twelfth Amendment: The Constitution Act 1991 re-established the parliamentary system of government; the President became the legitimate chief of the State; the Prime Minister became the executive chief; the cabinet led by the Prime Minister became liable to the Jatiya Sangsad; the post of the Vice-President was brought to an end; the President was compulsory to be voted by the members of the Jatiya Sangsad.

Thirteenth Amendment: The Constitution Act 1996 offered for a non-party Caretaker Government which, stand-in as an acting government would provide all potential aid and assistance to the Election Commission for holding the general

election of members of the Jatiya Sangsad serenely, moderately and with detachment. The caretaker government, consist of the Chief Adviser and not more than 10 other advisers, would be communally accountable to the President and would stand on charge on the date on which the Prime Minister entered upon his office after the charter of the new Sangsad.

Fourteenth Amendment: The Constitutional Act 1994 was voted for providing, among others, the following provisions: reservation of 45 spaces for women on a comparative demonstration basis for the next 10 years; increase in the retirement time of Supreme Court Judges from 65 to 67 years; and put on view of portrayal of the President and the Prime Minister in all government, semi-government and autonomous offices and diplomatic missions out of the country.

Fifteenth amendment:
The Fifteenth Amendment was passed on 30 June 2011 made some significant changes to the constitution. The amendment scrapped the system of Caretaker Government of Bangladesh. It also made following changes to the constitution

- Increased number of women reserve seats to 50 from existing 45.
- After the article 7 it inserted articles 7(a) and 7(b) in a bid to end take over of power through extra-constitutional means.
- Restored secularism and freedom of religion.
- Incorporated nationalism, socialism, democracy and secularism as the fundamental principles of the state policy.
- Acknowledged Sheikh Mujibur Rahman as the Father of the Nation.

Sixteenth amendment:
16th amendment of the constitution was passed by the parliament on 22th September 2014, which gave power to the Jatiyo Shangshad to remove judges if allegations of incapability or misconduct against them are proved.] On 5 May 2016, the Supreme Court of Bangladesh declared the 16th Amendment illegal and contradictory to the Constitution.

Seventeenth Amendment:
17th amendment of the constitution was passed by the parliament on 29th July 2018 increases the tenure of 50 women parliamentarians who are elected in the women reserved seat to 25 years.